

		“Express indemnity generally is not subject to equitable considerations or a joint legal obligation to the injured party; rather, it is enforced in accordance with the terms of the contracting parties' agreement... [i]n this sense, express indemnity allows contracting parties ‘great freedom to allocate [indemnification] responsibilities as they see fit,’ and to agree to ‘protections beyond those afforded by the doctrines of implied or equitable indemnity.’” (<i>Prince v. Pacific Gas & Electric Co.</i> (2009) 45 Cal.4th 1151, 1158 [internal citations omitted].) Mission argues that Welltower is not liable to Plaintiff, and also that Mission is not liable to Plaintiff (due to the workers’ compensation exclusivity doctrine). However, Welltower’s claim for express indemnity is not conditioned upon Mission (or Welltower) ultimately being found liable. Because of this, the motion for summary judgment is denied as there is a triable issue of fact concerning the application of the express indemnity agreement between the parties. Cross-Complainant Welltower Mission Viejo Medical Center JV, LLC shall give notice.
108	2023-01320118 West vs. Zacky	1. Motion for Sanctions 2. Motion to Disqualify Attorney of Record No tentative ruling issued.
109	2025-01534663 Beyene vs. Pavia	1. Motion to Quash Service of Summons 2. Case Management Conference Specially-appearing defendant Sigma Pi Fraternity International, Inc.’s (“SPFI”) Motion to Quash Service of Summons and Compliant is granted. Plaintiffs’ unopposed request for judicial notice is granted. The Court notes that the hearing on this motion was continued to allow Plaintiffs an opportunity to conduct jurisdictional discovery and to provide the parties with an opportunity to file supplemental briefing. (ROA 70.) The Court, having taken into account the original briefing, the supplemental briefing, and the evidence presented therewith, finds that the motion should be granted. This action arises from the tragic death of Simon Daniel. His mother brings this action for wrongful death and survival on behalf of Daniel’s estate and on her own behalf. (ROA 10.) Daniel is alleged to have “died as a result of a hazing incident on May 17, 2025,” during which time he was a “resident of the State of California.” (FAC at ¶ 5.) Daniel is alleged to have boarded a boat, while at Lake Havasu in Arizona, with other members of CSUF’s Sigma Pi Fraternity, Epsilon Nu Chapter. Daniel was allegedly prevented from re-entering the boat “as a part of a hazing ritual,” which forced him to “stay in the water for an unreasonable amount of time,” and resulted in his drowning and death. (FAC at ¶¶ 19-25.) SPFI is alleged to be the national organization of which Sigma Pi was a local chapter, which “controls and monitors the day-to-day activities of its local chapter, Sigma Pi.” (FAC at ¶¶ 20-21.) Defendants are alleged to have “directed, encouraged, authorized, ratified, and/or contributed to the hazing that occurred on the day of the incident,” and to have “negligently organized, managed, supervised, advertised, and trained in connection with the boat trip which resulted in the death of” Daniel. (FAC at ¶¶ 26-27.) Presently, SPFI specially appears and moves under CCP sections 410.10 and 418.10(a)(1)

for an order quashing service of the summons and FAC. SPFI contends the Court lacks personal jurisdiction over it, because it is “a Tennessee-based nonprofit corporation whose alleged California connections consist only of having an affiliated local chapter at Cal State and vague, conclusory assertions about ‘training’ and ‘control’ over chapter activities.” (ROA 34 [Mot. at p. 6].)

Legal Standard

A defendant may move to quash service of summons, under CCP section 418.10, subdivision (a)(1), on the ground that the court lacks jurisdiction over defendant. (Code Civ. Proc. § 418.10, subd. (a)(1).) “Where a nonresident defendant challenges jurisdiction by way of a motion to quash, the plaintiff bears the burden of establishing by a preponderance of the evidence that minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction.” (*Elkman v. National States Ins. Co.* (2009) 173 Cal.App.4th 1305, 1312-1313.) The plaintiff must present facts “demonstrating that the conduct of defendants related to the pleaded causes of action is such as to constitute constitutionally cognizable ‘minimum contacts.’” (*Id.* at 1313, internal citation omitted.) If there is no conflict in the evidence, “the question of jurisdiction is purely one of law.” (*Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062.)

Each individual has a liberty interest in not being subject to the judgments of a forum with which he or she has established no meaningful minimum “contacts, ties or relations.” (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 471-472.) As a matter of fairness, a defendant should not be “haled into a jurisdiction solely as the result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts.” (*Id.* at 475.) California’s long-arm statute authorizes California courts to “exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States.” (Code Civ. Proc. § 410.10.) A state court’s assertion of personal jurisdiction over a nonresident defendant who has not been served with process within the state comports with the requirements of the due process clause of the federal Constitution if the defendant has such minimum contacts with the state that the assertion of jurisdiction does not violate “ ‘traditional notions of fair play and substantial justice.’ ” (*Int’l Shoe Co. v. Washington* (1945) 326 U.S. 310, 316.)

Personal jurisdiction may be either general or specific.

No General Jurisdiction

“A state court may exercise general jurisdiction only when a defendant is ‘essentially at home’ in the State. (*Ford Motor Company v. Montana Eighth Judicial District Court* (2021) 592 U.S. 351, 358.) “For a corporation, its domicile, place of incorporation, and/or principal place of business within a state constitute the paradigm bases for establishing general jurisdiction.” (*Strasner v. Touchstone Wireless Repair & Logistics, LP* (2016) 5 Cal.App.5th 215, 222, citing *Goodyear Dunlop Tires Operations, S.A. v. Brown* (2011) 564 U.S. 915, 924.)

Here, SPFI contends it is not subject to general jurisdiction, because it is: “incorporated in Indiana”; “has its principal place of business in Smyrna, Tennessee”; and, “does not maintain any offices or retail locations, nor has any employees, in California.” (Mot. at p. 8.) These statements are supported by the affidavit of Gregory Ritchie, SPFI’s Interim Chief Executive Officer. (Ritchie Aff. at ¶¶ 2, 4.)

Although Plaintiffs oppose the motion, their opposition does not address SPFI’s argument that it is not subject to general jurisdiction in California. Rather, the argument in the opposition re: jurisdiction is limited to arguing specific jurisdiction. (See Opp’n at pp. 5-7.) Because Plaintiffs do not dispute that California is not SPFI’s domicile, place of incorporation, or principal place of business, the Court finds they have not met their

burden of showing that SPFI is subject to general jurisdiction in California.

Specific Jurisdiction

If the nonresident defendant does not have substantial and systematic contacts in the forum sufficient to establish general jurisdiction, the nonresident defendant still may be subject to the specific jurisdiction of the forum, if: “(1) ‘the defendant has purposefully availed himself or herself of forum benefits’ [citation]; (2) ‘the “controversy is related to or ‘arises out of’ [the] defendant’s contact with the forum” ‘ [citations]; and (3) ‘ “the assertion of personal jurisdiction would comport with ‘fair play and substantial justice.’” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268, abrogated on another ground as stated in *David L. v. Superior Court* (2018) 29 Cal.App.5th 359, 369–370, 373.)

The first factor, purposeful availment, “focuses on the defendant’s intentionality. [Citation.] This prong is only satisfied when the defendant purposefully and voluntarily directs his activities toward the forum so that he should expect, by virtue of the benefit he receives, to be subject to the court’s jurisdiction based on” his contacts with the forum.” This requirement “ensures that a defendant will not be haled into a jurisdiction solely as a result of ‘random,’ ‘fortuitous,’ or ‘attenuated’ contacts [citations], or of the ‘unilateral activity of another party or a third person.’ [Citations.]” A defendant purposefully avails itself of the privilege of conducting activities within the forum state when “it has clear notice that it is subject to suit there, and can act to alleviate the risk of burdensome litigation by procuring insurance, passing the expected costs on to customers, or, if the risks are too great, severing its connection with the State.” (*Id.* at p. 269, internal citations omitted.)

Secondly, “there must be a substantial connection between the dispute and the defendant’s forum activities.” (*Anglo Irish Bank Corp., PLC v. Superior Court* (2008) 165 Cal.App.4th 969, 985.) “In other words, there must be ‘an affiliation between the forum and the underlying controversy, principally, [an] activity or an occurrence that takes place in the forum State and is therefore subject to the State’s regulation.’” (*Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County* (2017) 582 U.S. 255, 262, citation omitted.) This element (sometimes referred to as “relatedness” or “forum-relatedness”) requires a showing of “a connection between the plaintiff’s claims and the nonresident defendant’s forum activities.” (*LG Chem, Ltd. v. Superior Court of San Diego County* (2022) 80 Cal.App.5th 348, 364.) It is an “intensely fact-specific” inquiry that is not “susceptible of mechanical application.” (*Rivelli v. Hemm* (2021) 67 Cal.App.5th 380, 392.)

The Court finds there is sufficient evidence that the purposeful availment inquiry has been satisfied. Although SPFI repeatedly describes the relationship between itself and the local CSUF chapter as being “passive,” SPFI’s granting of a charter to the local chapter at CSUF is not a “passive” act. The local chapter could not have “unilaterally” established a charter relationship with SPFI; rather, SPFI had to take the intentional act of forming the relationship by granting the charter. Consequently, by granting the charter, SPFI intended to allow the local chapter to operate in the State of California. Further, because the local chapter operates by recruiting members from which SPFI admits it receives dues, fees, or other payments, SPFI should expect that it may be subject to the jurisdiction of California courts by virtue of the benefits it receives from granting charters to local chapters in California. Thus, the Court concludes that the purposeful availment inquiry has been satisfied.

However, even if SPFI purposely availed itself of the benefits of granting charters to local chapters in California, the Court must also find that the “relatedness” inquiry has been satisfied. As explained, below, the Court finds Plaintiffs have not met their burden of

		proving relatedness is present through the presentation of “competent evidence of jurisdictional facts.” (<i>LG Chem, Ltd. v. Superior Court of San Diego County</i> (2022) 80 Cal.App.5th 348, 365.) As described, above, Plaintiffs allege in the FAC that SPFI is liable for the wrongful death of the Decedent because of the “hazing ritual” that occurred in Lake Havasu, Arizona. The Defendants allegedly “directed, encouraged, authorized, ratified, and/or contributed to the hazing that occurred on the day of the incident” and “negligently organized, managed, supervised, advertised, and trained in connection with the boat trip which resulted in the death of [Decedent].” (FAC at ¶¶ 26-27.) Nevertheless, Plaintiffs have not proffered any evidence that SPFI, beyond granting a charter to the CSUF chapter, had anything to do with the “hazing” incident, which gives rise to Plaintiffs’ wrongful death and survival claims. The allegations in Plaintiffs’ pleading are not evidence that the Court considers in ruling on this motion. (<i>Rivelli v. Hemm</i> (2021) 67 Cal.App.5th 380, 393 [“To meet this burden, a plaintiff must do more than make allegations.... Allegations in an unverified complaint are insufficient to satisfy this burden of proof.”].) Although relatedness is an “intensely fact-specific inquiry,” the Court finds the record does not bear resemblance to cases where the relatedness inquiry has been satisfied. (See, e.g., <i>Hirsch v. Blue Cross, Blue Shield of Kansas City</i> (9th Cir. 1986) 800 F.2d 1474, 1480 [breach of contract claim was forum-related by virtue of the parties having entered into the contract]; <i>In re Fuel Industry Climate Cases</i> (2026) 117 Cal.App.5th 882, 894 [relatedness inquiry satisfied where the evidence showed the company was “directly involved in distributing fossil fuel products to California consumers,” even if it did not sell the gasoline directly to the consumers, and product liability claims were based on the distribution of the gasoline]; <i>People ex rel. Harris v. Native Wholesale Supply Co.</i> (2011) 196 Cal.App.4th 357, 365 [relatedness requirement was readily met where the State is alleging the non-resident cigarette distributor is violating state law by distributing the cigarettes to the California public]; <i>SK Trading International Co. Ltd. v. Superior Court of San Francisco County</i> (2022) 77 Cal.App.5th 378, 390 [relatedness requirement satisfied where evidence showed that officers of oil and gas firm were directly involved in the formulation of the policies that the complaint alleges constituted an anticompetitive scheme].) Unlike in those cases, here, it would be a leap to say there is a connection between SPFI’s connection with California and the <i>specific</i> claims at issue. Plaintiffs are not alleging any claims based on SPFI’s granting of a charter to the CSUF chapter, or any claims relating to its collection of dues. Rather, Plaintiffs claims specifically arise from the events surrounding the hazing incident in Lake Havasu. Despite being given an opportunity to conduct jurisdictional discovery, Plaintiffs have not proffered any evidence that there was any direct conduct by SPFI that led to the tragic events of that day. Aside from showing that SPFI granted a charter to the local chapter, that SPFI issued policies and guidelines re: hazing, and that SPFI could discipline a chapter by revoking its charter, there is no evidence that SPFI urged, fostered, or encouraged the event at Lake Havasu, much less the alleged hazing incident that took place that day. As such, Court grants the motion to quash and quashes the service of the summons and the FAC served on SPFI. The case management conference is continued to November 2, 2026 at 2:00 p.m. in Department C27. SPFI is ordered to give notice of the ruling.
111	2024-01401763	1. Demurrer to Amended Complaint